

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees (\$160,000), relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, the Court deferred consideration of the fee award until final approval. Counsel have calculated a lodestar of \$177,955, based on 243.3 hours of attorney time at hourly rates ranging from \$550 to \$950, with the plurality of the work billed at \$750. The implied multiplier is 0.9. There is no need for an adjustment here. The fees are reasonable and are approved.

Litigation costs of up to \$35,000 are reasonable and are approved.

Settlement administration costs of \$6,990 are reasonable and are approved.

Similarly, litigation costs and the requested representative payment of \$7,500 for each plaintiff are now reviewed. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Mr. Keys attests that he spent about 25 hours working on the case and that being the class representative could affect his future employment prospects. Ms. Jordan attests that she spent about 20 hours working on the case and that being the class representative could affect her future employment prospects. All things considered, the request for \$7,500 each is approved.

D. Conclusion

In its tentative decision for the June 5, 2025, calendar, the Court found that, other than that issue of the recently-added claims, it would find that there is sufficient evidence that the settlement is fair, reasonable, and adequate to warrant preliminary approval. The Court, however, required that counsel submit a declaration establishing that those claims were investigated and pursued as thoroughly as the other claims. Counsel provided a declaration in conjunction with the motion for preliminary approval that provides sufficient discussion of the issue.

The Court finds that the settlement is fair, reasonable, and adequate, and grants the motion.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

2. 9:00 AM CASE NUMBER: C23-00841
CASE NAME: ANGELITO ALVIZ VS. VIRGILIO LEGARTE
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL AS TO JAYJAY ALFONSO**
FILED BY: ALFONSO, JAY JAY
TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

3. 9:00 AM CASE NUMBER: C23-03009
CASE NAME: RONALD ABBS, JR. VS. DAVID BOLES
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: S&J PROPERTIES, CONSTRUCTION, INC.
TENTATIVE RULING:

Withdrawn by moving party December 4, 2025.

4. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
***HEARING ON MOTION IN RE: CONFIRM REFEREE REPORT AND TO ALLOCATE SALE PROCEEDS**
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Attorney Endy Ukoha-Ajike's motion to impose a lien on this instant partition action on the Paulding Defendants portion of the subject property.

For the following reasons, **Attorney Endy Ukoha-Ajike's motion is granted.**

Factual and Procedural Background

Clients came to an attorney requesting assistance in a title dispute and associated unlawful detainer matter. They signed an agreement granting the attorney a lien on the subject property in exchange for legal services. At the time this legal agreement was signed, John Paulding and Timothy Paulding were residing in real property located at 5648 Burlingame Ave., Richmond, California. This property had belonged to their mother, Shirley Hart and her sister, Thelma Jackson, in joint tenancy.

Shirley Hart had formed a revocable trust and recorded a deed from herself to the Trust. After, she died on August 8, 2021, Thelma Jackson filed an Affidavit of Death of Joint Tenant claiming that the property belonged to her in its entirety. She then sent a letter demanding that John Paulding and Timothy Paulding vacate and hand over possession of the property to her. Subsequently she filed an unlawful detainer action to evict them from the property based on her claim that the property belonged to her.

Attorney Endy Ukoha-Ajike on behalf of John and Timothy Paulding then filed a petition under Probate Code §850 to establish that at least 50% of the property belonged to the Shirley Hart Trust whose Trustee and equal beneficiaries were John and Timothy Paulding. Attorney Endy Ukoha-Ajike on their behalf also mounted a defense to the unlawful detainer action filed by Ms. Jackson. Following a trial on November 3, 2023, Department 15 of this court ruled in their favor on the §850 petition and movant successfully obtained a 50% interest in the Burlingame Avenue property for the Pauldings. Attorney Endy Ukoha-Ajike defeated the unlawful detainer action subsequently. The representation